

JASON M. BARBARA & ASSOCIATES, P.C.

EXHIBIT "E"

ORIGINAL

1

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF SUFFOLK

-----x

DIANE C. DESOUSA AND THOMAS E.

DESOUSA,

Plaintiffs,

- against -

RICHARD A. CALVAGNO II AND PATRICK

J. KARCHER,

Defendants.

Index No.: 600371/2021

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1225 Franklin Avenue
Garden City, New York

May 11, 2023
12:56 p.m.

Examination Before Trial of the
Defendant RICHARD A. CALVAGNO II, pursuant to
Notice, before Elizabeth Scheibe, a Notary
Public of the State of New York.

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A P P E A R A N C E S:

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-and-

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A P P E A R A N C E S: (Continued)

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NOT PRESENT

ALSO PRESENT:

THOMAS E. DESOUSA

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221. UNIFORM RULES FOR THE
CONDUCT OF DEPOSITIONS

221.1 Objections at Depositions

(a) Objections in general. No objections shall be made at a deposition except those, pursuant to subdivision (b), (c) or (d) of Rule 3115 of the Civil Practice Law and Rules, would be waived if not interposed, and except in compliance with subdivision (e) of such rule. All objections made at a deposition shall be noted by the officer before whom the deposition is taken, and the answer shall be given and the deposition shall proceed subject to the objections and to the right of a person to apply for appropriate relief pursuant to Article 31 of the C.P.L.R.

(b) Speaking objections restricted. Every objection raised during a deposition shall be stated succinctly and framed so as not to suggest an answer to the deponent and, at the request of the questioning attorney, shall include a clear statement as to any defect in form or other basis of error or irregularity. Except to the extent permitted by C.P.L.R. Rule 3115 or by this rule, during the course of the examination persons in attendance shall not make statements or comments that interfere with the questioning.

221.2 Refusal to answer when objection is made

A deponent shall answer all questions at a deposition, except (i) to preserve a privilege or right of confidentiality, (ii) to enforce a limitation set forth in an order of the court, or (iii) when the question is plainly improper and would, if answered, cause significant prejudice to any person. An attorney shall not direct a deponent not to answer except as provided in C.P.L.R. Rule 3115 or this subdivision. Any refusal to answer or direction not to answer shall be accompanied by a succinct and clear statement of the basis therefor. If the deponent does not answer a question, the examining party shall have the right to complete the remainder of the deposition.

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221. UNIFORM RULES FOR THE
CONDUCT OF DEPOSITIONS

221.3 Communication with the deponent

An attorney shall not interrupt the deposition for the purpose of communicating with the deponent unless all parties consent or the communication is made for the purpose of determining whether the question should not be answered on the grounds set forth in section 221.2 of these rules and, in such event, the reason for the communication shall be stated for the record succinctly and clearly.

IT IS FURTHER STIPULATED AND AGREED that the transcript may be signed before any Notary Public with the same force and effect as if signed before a clerk or a Judge of the court.

IT IS FURTHER STIPULATED AND AGREED that the examination before trial may be utilized for all purposes as provided by the C.P.L.R.

IT IS FURTHER STIPULATED AND AGREED that all rights provided to all parties by the C.P.L.R. cannot be deemed waived and the appropriate sections of the C.P.L.R. shall be controlling with respect hereto.

IT IS FURTHER STIPULATED AND AGREED by and between the attorneys for the respective parties hereto that a copy of this examination shall be furnished, without charge, to the attorneys representing the witness testifying herein.

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1
2 R I C H A R D A. C A L V A G N O I I,
3 called as a witness, having been
4 duly sworn by a Notary Public, was
5 examined and testified as follows:

6 EXAMINATION BY

7 MR. INDUSI:

8 Q. Please state your full name for
9 the record.

10 A. Richard A. Calvagno II.

11 Q. Please state your home address
12 for the record.

13 A. 320 Grand Central Avenue,
14 Amityville, New York 11701.

15 Q. Good morning, Mr. Calvagno. My
16 name is Joseph Indusi. As you probably heard
17 by now already a few times, I will be asking
18 you some questions today about a lawsuit in
19 connection with the Desousas; Tom and Diane.

20 Just a few ground rules before we
21 begin. As the court reporter indicated here
22 already, try not to talk over me. I am going
23 to ask you a question, the question is out
24 there, give an answer. The answer has to
25 verbal. It cannot be head nods or head

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1 R. A. CALVAGNO II
2 shakes. Even though you may think you know
3 where my question is going, let me get the
4 complete question out because this a cold
5 record. There is no videocamera here. It is
6 a type-written record. Let me get my question
7 out and then you can answer and I will ask my
8 next question. I promise I will do the same
9 to try not to ask questions over your answers.

10 A. Sure.

11 Q. If you don't understand any
12 questions just ask me to rephrase. Your
13 attorney may object. I am happy to rephrase
14 the question or clarify anything you don't
15 understand.

16 If you need a break at any time,
17 I am happy to give you a break. I didn't
18 mention that I have a four o'clock hard stop,
19 but I am happy to give you break. My only
20 rule with the break is that you answer the
21 question that is out and then we can take a
22 break if you need to speak to your attorney or
23 whatever you need to do.

24 A. Okay.

25 Q. Have you taken any medication

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1 R. A. CALVAGNO II

2 today?

3 A. No. Well, what kind of
4 medication?

5 Q. Any medication that would affect
6 your ability to testify truthfully?

7 A. No.

8 Q. Have you taken any alcohol or
9 mind-altering drugs that would affect your
10 ability to testify truthfully?

11 A. No.

12 Q. Is there anything that in your
13 mind you think could affect your ability to
14 testify truthfully here today?

15 A. No.

16 Q. Your full name is Richard A.
17 Calvagno II; is that correct?

18 A. Yes.

19 Q. Do you go by any other names?

20 A. No.

21 Q. What is your date of birth?

22 A. 11/19/74.

23 Q. Do you have a driver's license?

24 A. Yes.

25 Q. What state issues that driver's

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1 R. A. CALVAGNO II

2 license?

3 A. New York.

4 Q. Did you review any documents or
5 materials in preparation for today's
6 deposition?

7 A. No.

8 Q. You said you currently live at
9 320 Grand Central Avenue?

10 A. Yes.

11 Q. That's in Amityville?

12 A. Yes.

13 Q. Who do you live with at 320 Grand
14 Central Avenue?

15 A. Anthony Crimi.

16 Q. Do you live with anyone else at
17 320 Grand Central Avenue in Amityville?

18 A. No.

19 Q. Who is Anthony Crimi to you?

20 A. He's my boyfriend.

21 Q. Are you currently married?

22 A. No.

23 Q. Have you ever been married in the
24 past?

25 A. No.

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1 R. A. CALVAGNO II

2 Q. Have you ever been a party to a
3 lawsuit before?

4 A. I believe so.

5 Q. Do you recall what --

6 A. Yes, I was.

7 Q. Do you recall what the subject
8 matter of that lawsuit was?

9 A. Breach of contract with a bank.

10 Q. Could you be a little more
11 specific?

12 A. It was a breach of contract
13 lawsuit that my lawyer -- attorney filed for a
14 loan that was not done correctly.

15 Q. Would it be fair to say that you
16 were the Plaintiff in that lawsuit?

17 A. I -- yes, I was.

18 Q. Where was that lawsuit pending?

19 A. Suffolk County.

20 Q. Now you understand in this case
21 you are a Defendant, correct?

22 A. Correct.

23 Q. Have you ever been sued or a
24 Defendant in any other cases?

25 A. No.

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1 R. A. CALVAGNO II

2 Q. Have you ever given sworn
3 testimony before or is today your first time?

4 A. I have done a deposition before.

5 Q. In what cases have you testified
6 in a deposition?

7 A. For my breach of contract case.

8 Q. Other than the breach of contract
9 case have you given depositions in any other
10 cases?

11 A. No.

12 Q. What is your highest level of
13 education?

14 A. Some college.

15 Q. Where did you attend college?

16 A. Nassau Community College.

17 Q. What was that for?

18 A. I don't remember.

19 Q. How long ago was that?

20 A. A long time ago.

21 Q. Approximately?

22 A. 20 years ago.

23 Q. And you did not complete or
24 receive any degree --

25 A. No.

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1 R. A. CALVAGNO II

2 Q. -- from Nassau Community College?

3 A. Correct.

4 Q. Do you have any professional
5 licenses that are issued by any government
6 agency or body other than a New York driver's
7 license?

8 A. No.

9 Q. Are you presently employed?

10 A. Yes.

11 Q. Where?

12 A. C & R Automotive.

13 Q. Where is that located?

14 A. In Hicksville.

15 Q. What is the nature of your
16 employment with C & R Automotive?

17 A. Office manager.

18 Q. What are your job duties as
19 office manager?

20 A. Run the office, run the drivers.

21 Q. What does C & R Automotive do?

22 A. Auto body shop and towing
23 company.

24 Q. Do you have any ownership
25 interest in C & R Automotive?

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1 R. A. CALVAGNO II

2 A. No.

3 Q. Who is your boss at C & R

4 Automotive?

5 A. Mike.

6 Q. What is Mike's last name?

7 A. I don't know if he wants me to
8 give it out. He does not give it out to
9 customers either. I am not going to give it
10 out.

11 MR. INDUSI: I am going to
12 leave a blank spot in the transcript.
13 I don't think that's a viable
14 objection to not give an answer that
15 his boss does not want his last name
16 given out.

17 I am going to direct and have
18 this question marked with a blank and
19 when we get the transcript to have it
20 filled in.

21 (INSERT)

22 MS. HAMID: That's fine.

23 MR. INDUSI: If you're going
24 to make an objection we can mark that
25 for a ruling as well.

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1 R. A. CALVAGNO II

2 I don't think that's a legal
3 objection.

4 Q. When did you start working at
5 C & R Automotive?

6 A. About nine years ago.

7 Q. Have you been with C & R
8 Automotive consistently throughout that nine
9 years?

10 A. Yes.

11 Q. Has C & R Automotive been known
12 by any other name?

13 A. They have a d/b/a.

14 Q. What --

15 A. AAAA1 Towing. Hicksville
16 Collision.

17 Just out of curiosity, can I ask
18 a question?

19 Q. It's not really your turn to --

20 A. I don't think my job information
21 has anything to do with this case. I am not
22 going to keep giving my boss's information
23 out.

24 MR. INDUSI: If we want to
25 stop and we want to call the judge

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1 R. A. CALVAGNO II

2 again -- this is basic background
3 information here, which is standard
4 in every deposition that I have ever
5 done. I am not really getting all
6 that detailed here, but we can call
7 the judge if this is going to be a
8 consistent -- if we are going to hit
9 all these roadblocks.

10 If you want to leave a blank
11 for his employer's name and talk to
12 him after. If you want to take a
13 break and talk to him. These are not
14 objectionable questions.

15 THE WITNESS: I will answer
16 anything to do with the case. My job
17 and my boss have nothing to do with
18 this case.

19 MS. HAMID: Just answer this
20 question.

21 Q. I have Triple A1 Towing (sic) and
22 I have Hicksville Collision. Are there any
23 other --

24 A. I am not sure.

25 Q. You say you're not sure. You've

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1 R. A. CALVAGNO II

2 been an office manager there for nine years?

3 A. Yes.

4 Q. Do you collect checks from
5 customers that pay?

6 A. I don't work in the body shop. I
7 work in the towing part of it only.

8 Q. So your job duties involve towing
9 only?

10 A. Yes.

11 Q. You testified earlier that you
12 run the office and run the drivers; is that
13 correct?

14 A. Correct.

15 Q. How does that work; a call comes
16 in for a tow and you dispatch the drivers?

17 A. Correct.

18 Q. Do you do any invoicing or
19 billing?

20 A. If people come and pick up cars,
21 yes.

22 Q. Throughout your time there have
23 you ever seen any checks made to any other
24 entities other than C & R Automotive, Triple
25 A1 Towing or Hicksville Collision?

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1 R. A. CALVAGNO II

2 MS. HAMID: I am going to
3 object. The scope of this case has
4 nothing do with his employment.

5 The case is near the property
6 of these two parties has nothing to
7 do with his employment.

8 He has answered the basic
9 information regarding where he works,
10 the scope of his duties and how long
11 he has been there for.

12 MR. INDUSI: So if you want
13 to -- your objection is noted for the
14 record. I don't believe that's a
15 basis to direct him not to answer the
16 question.

17 MS. HAMID: I am noting my
18 objection.

19 MR. INDUSI: Do I have an
20 answer for that question?

21 THE WITNESS: What was the
22 question?

23 MR. INDUSI: Can you read it
24 back.

25 (Requested testimony was

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1 R. A. CALVAGNO II

2 read.)

3 A. No.

4 Q. What is the physical address of C
5 & R Automotive?

6 A. Where I work?

7 Q. Yes.

8 A. 34 Charlotte Avenue, Hicksville,
9 New York 11801.

10 Q. Is that the physical location of
11 the --

12 MR. INDUSI: Withdrawn.

13 Q. Are there any other physical
14 locations for C & R Automotive or Triple A1
15 Towing or Hicksville Collision?

16 A. Yes.

17 Q. The location for 34 Charlotte
18 Avenue, is that Triple A1 Towing?

19 A. Yes. It's AAAA1.

20 Q. AAAA1, I'm sorry.

21 When you go to work every day for
22 the last nine years where you report to work
23 is 34 Charlotte Avenue in Hicksville?

24 A. Correct.

25 Q. Prior to your employment at C & R

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1 R. A. CALVAGNO II

2 where did you work?

3 A. I did not work. I took some time
4 off.

5 Q. Approximately how long?

6 A. I don't remember. A year or two
7 maybe.

8 Q. Have you ever been convicted of a
9 crime?

10 A. I prefer not to answer that.

11 MR. INDUSI: Can you direct
12 him to answer that.

13 MS. HAMID: You can answer.

14 THE WITNESS: I need to speak
15 to my attorney first before I answer
16 the question.

17 MR. INDUSI: There is a
18 question on the table. I would ask
19 that --

20 THE WITNESS: I'd like to
21 speak to my attorney in private.

22 MR. INDUSI: The record stands
23 on its own. That's fine.

24 (A recess was taken.)

25 MR. INDUSI: Can you read back

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1 R. A. CALVAGNO II

2 the open question.

3 (Requested testimony was
4 read.)

5 A. Yes.

6 Q. In what state?

7 A. New York.

8 Q. Have you ever been convicted
9 outside of New York?

10 A. No.

11 Q. What crime have you been
12 convicted of in the State of New York?

13 A. I don't remember the actual
14 crime. It was about 10 years ago.

15 Q. Do you know what courthouse you
16 went to?

17 A. Mineola.

18 Q. Do you recall the subject matter,
19 not the actual charge, of the crime for which
20 you were convicted?

21 A. What do you mean?

22 Q. If you don't remember the exact
23 -- you're saying you don't remember the exact
24 charge.

25 I am saying do you remember the

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1 R. A. CALVAGNO II
2 subject matter of the charge in which you were
3 convicted?

4 A. As far as like why --

5 Q. Yes.

6 A. -- I was arrested?

7 Q. I am not asking about arrests. I
8 am asking the actual conviction, the subject
9 matter of the conviction?

10 A. DWI charge in '09.

11 Q. 2009 DWI conviction in Mineola.
12 Other than the DWI conviction in Mineola -- I
13 am not going to hold you to 2009 --
14 approximately 2009, have you ever been
15 convicted of any other crimes?

16 A. Yes.

17 Q. What other crime?

18 A. Drugs.

19 Q. When?

20 A. Within the past 10 -- about 10
21 years ago sometime roughly.

22 Q. Do you recall what type of drugs?

23 A. Cocaine.

24 Q. Do you remember what courthouse
25 that was in?

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1 R. A. CALVAGNO II

2 A. Mineola.

3 Q. Other than the DWI and the
4 conviction for drugs in Mineola, were you
5 convicted of any other crimes?

6 A. No.

7 Q. Do you currently use any social
8 media applications?

9 A. Yes.

10 Q. Do you use Instagram?

11 A. Yes.

12 Q. What is your profile name on
13 Instagram?

14 A. I have no idea what it is
15 honestly.

16 Q. Would looking at your phone
17 refresh your recollection?

18 A. Probably.

19 Q. Take a minute to look at your
20 phone.

21 A. It's my name.

22 Q. Your Instagram user name is
23 Richard Calvagno?

24 A. Yes, Rich Calvagno.

25 Q. Do you use Facebook?

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1 R. A. CALVAGNO II

2 A. Yes.

3 Q. What is your profile on Facebook?

4 A. My name.

5 Q. And that's Richard Calvagno?

6 A. Yes.

7 Q. Do you use any other social media
8 applications other than Instagram and
9 Facebook?

10 A. No.

11 Q. Now you mentioned you live with
12 Anthony Crimi?

13 A. Correct.

14 Q. Do you and Anthony Crimi or just
15 you own the home located at 320 Grand Central
16 Avenue?

17 A. Me and somebody else.

18 Q. Who is the other person that owns
19 this home at 320 Grand Central Avenue in
20 Amityville?

21 A. Patrick Karcher.

22 Q. Who is Patrick Karcher?

23 A. A friend.

24 Q. Just to clarify, I know you said
25 the only two people that live there are you

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1 R. A. CALVAGNO II

2 and Anthony Crimi.

3 Patrick Karcher does not live at
4 320 Grand Central Avenue; is that correct?

5 A. He doesn't.

6 Q. Has Patrick Karcher ever lived at
7 320 Grand Central Avenue in Amityville?

8 A. No, he has not.

9 Q. Mr. Desousa, who is sitting here
10 today obviously, and his wife Diane Desousa
11 live directly across the street from you on
12 Grand Central Avenue in Amityville, correct?

13 A. Correct.

14 Q. How long you have you lived at
15 320 Grand Central Avenue?

16 A. Roughly about six years.

17 Q. Where did you live before there?

18 A. In Island Park.

19 Q. What was the address in Island
20 Park?

21 A. 212 California Place South.

22 Q. Now, where you and Mr. Desousa
23 live on Grand Central Avenue in Amityville is
24 towards the end of the road; is that correct?

25 A. Yes.

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1 R. A. CALVAGNO II

2 Q. Approximately four houses between
3 your houses and the end of the block; is that
4 correct?

5 A. Yes.

6 Q. Of course, both of you have
7 backyards on the water?

8 A. Yes.

9 Q. Great South Bay?

10 A. Yes.

11 Q. So Grand Central Avenue in
12 Amityville is essentially a peninsula street
13 that goes down and sticks out into the Great
14 South Bay; there is water on both sides,
15 correct?

16 A. Yes.

17 Q. To that end, Grand Central Avenue
18 is a dead end naturally?

19 A. Naturally.

20 Q. Now, six years ago when you moved
21 into 320 Grand Central Avenue did you have any
22 relationship with Thomas Desousa or Diane
23 Desousa?

24 A. After I moved in?

25 Q. Yes.

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1 R. A. CALVAGNO II

2 A. Yes.

3 Q. How would you characterize your
4 relationship with Tom Desousa and Diane
5 Desousa during the first year that you lived
6 at 320 Grand Central Avenue in Amityville?

7 A. It was normal. It was like a
8 normal neighbor relationship.

9 Q. Did you ever have Tom Desousa and
10 Diane Desousa over to your home for any social
11 gatherings during the first year you lived at
12 320 Grand Central Avenue in Amityville?

13 A. Yes.

14 Q. Approximately how many times
15 during the first year that you lived at 320
16 Grand Central Avenue in Amityville?

17 A. Probably once. Maybe twice.

18 Q. How about during the second year
19 you lived in Grand Central Avenue?

20 A. Yes.

21 Q. Approximately?

22 A. One to two times.

23 Q. And the third year that you lived
24 in Grand Cental --

25 A. Probably also one or two times.

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1 R. A. CALVAGNO II

2 Q. I am going now from -- I am going
3 to ask you a question -- at what point did
4 your relationship in your mind change with Tom
5 Desousa and Diane Desousa?

6 A. When I got the lawsuit served to
7 me.

8 Q. I believe the lawsuit was served
9 in --

10 A. 2021.

11 Q. Prior to 2021, prior to the date
12 the lawsuit was served in 2021, was there any
13 other event that sticks out in your mind that
14 caused your relationship with are Mr. Desousa
15 and Diane Desousa to not be the normal
16 neighborly relationship when you first moved
17 in?

18 A. Not that I can recall.

19 Q. Have you ever been over to the
20 Desousa household?

21 A. No.

22 MR. INDUSI: I am going to
23 mark this as Plaintiff's Exhibit 1.

24 (Plaintiff's Exhibit 1,
25 Photograph, was marked for

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1 R. A. CALVAGNO II

2 identification.)

3 MR. INDUSI: I am showing the
4 witness what has been marked as
5 Plaintiff's 1. Take a look at it and
6 when you're done looking at it I am
7 going to ask you some questions about
8 the document.

9 THE WITNESS: Okay.

10 Q. First, do you recognize what this
11 appears to be?

12 A. Yes.

13 Q. What do you recognize it to be?

14 A. A picture from my Ring doorbell.

15 Q. This is -- and your Ring doorbell
16 is located and positioned on the front of your
17 house located at 320 Grand Central Avenue in
18 Amityville?

19 A. Yes.

20 Q. We are looking at what is across
21 the street from your home, which is the home
22 of the Desousas, Tom and Diane, the Plaintiffs
23 in this case, correct?

24 A. Yes.

25 Q. In the driveway, in your driveway

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RICHARD A. CALVAGNO II - May 11, 2023

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1 R. A. CALVAGNO II

2 there are three vehicles; is that correct?

3 A. Yes.

4 Q. Whose vehicles are those?

5 A. Two of them are mine and one is
6 Anthony's.

7 Q. I will let you tell me. I am
8 going to hand the witness a marker and I'd ask
9 that you circle your two vehicles and you can
10 label them A and B for the record.

11 A. (Witness complies.)

12 Q. This looks like a Dodge Charger
13 Hellcat, correct?

14 A. Yes.

15 Q. And it looks like a GMC 2500?

16 A. Yes.

17 Q. Is it a 2500?

18 A. Yes.

19 Q. I assume Mr. Crimi's vehicle is
20 the light-colored sedan?

21 A. Correct.

22 Q. Now, this picture was taken and
23 actually provided by your attorney to Mr.
24 Cuomo. It's entitled Calvagno August 2, 2021,
25 open windows at 6:30 a.m. MP4.

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1 R. A. CALVAGNO II

2 Do you recognize the title of
3 this video clip? This is a still from that
4 video clip.

5 A. Yes.

6 Q. Is this -- this is the vehicles
7 and the general appearance of the front of
8 your house and Mr. Desousa's house on
9 August 2, 2021, correct?

10 A. Correct.

11 Q. Has it changed in any substantial
12 way between August 2, 2021, and today?

13 A. I have a bigger driveway.

14 Q. What happened with the driveway?

15 A. I enlarged it.

16 Q. Did you enlarge it to the south
17 or to the north?

18 A. To the north.

19 Q. As we know, one of the issues in
20 this case is your vehicle, which you've marked
21 as A I believe, the Dodge Charger or Hellcat.

22 Is it a Charger or is it a
23 Hellcat or is it one in the same?

24 A. One in the same. Charger Hellcat
25 addition.

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1 R. A. CALVAGNO II

2 Q. What makes a car a Hellcat versus
3 a regular Charger?

4 A. The engine.

5 Q. What makes a Charger a Hellcat;
6 you said --

7 A. Engine.

8 Q. Is it more than just the engine?
9 Does it have better suspension, better brakes,
10 all of the above?

11 A. Yes.

12 Q. It would be like the high-end
13 version --

14 A. Correct.

15 Q. -- of a stock car?

16 A. Correct.

17 Q. Is there a horsepower rating for
18 a car like this?

19 A. 707.

20 Q. Do you now what the zero-to-60
21 is?

22 A. Not off the top of my head.

23 MR. INDUSI: Off the record.

24 (A discussion was held off the
25 record.)

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1 R. A. CALVAGNO II

2 Q. And that's a stock 770?

3 A. 707.

4 Q. 707. That's stock from Dodge?

5 A. Bone stock. The car is from
6 Dodge.

7 Q. And your testimony is you did not
8 make any modifications to this vehicle?

9 A. No, I have not.

10 Q. That's both -- you never took the
11 car anywhere to be modified?

12 A. Correct.

13 Q. And you did not personally make
14 any modifications?

15 A. Correct.

16 Q. When did you purchase this
17 vehicle?

18 A. It was purchased in 2020 I think.

19 Q. You purchased it new; you were
20 the original owner?

21 A. It was a company car.

22 Q. It was a car that was purchased
23 for --

24 MR. INDUSI: Withdrawn.

25 Q. Is it your vehicle or is it a

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1 R. A. CALVAGNO II

2 C & R Automotive vehicle?

3 A. It's in my name. C & R was
4 paying for it.

5 Q. Did you pick the vehicle out or
6 did C & R pick the vehicle out?

7 A. I picked the vehicle out.

8 Q. I assume you used the pickup
9 truck as well for work or whatever --

10 A. No.

11 (Speaking simultaneously.)

12 Q. The car is in your name. When
13 you purchased the vehicle was it new or was it
14 preowned?

15 A. Purchased new.

16 Q. Where did you purchase the
17 vehicle?

18 A. Westbury Jeep Chrysler Dodge.

19 Q. Does C & R do any work for
20 Westbury Jeep Chrysler Dodge?

21 A. Yes.

22 Q. What type of work?

23 A. All of their towing and body
24 work.

25 MR. INDUSI: I want to show

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1 R. A. CALVAGNO II
2 you a letter that I ask be marked as
3 Plaintiff's 2.

4 (Plaintiff's Exhibit 2,
5 Letter, was marked for
6 identification.)

7 MR. INDUSI: I am showing the
8 witness a letter. Take a look at it
9 and let me know when you are done.

10 THE WITNESS: Okay.

11 Q. Do you recognize that letter?

12 A. Yes.

13 Q. Did you procure that letter in
14 connection with this litigation?

15 A. Yes.

16 Q. And the letter, in sum and
17 substance, indicates that you own a 2019 Dodge
18 Charger Hellcat addition and had it
19 essentially factory supplied in stock?

20 A. Correct.

21 Q. Who is Steve Gargulo?

22 A. He's the service director at
23 Westbury Jeep Chrysler Dodge.

24 Q. Other than a relationship with C
25 & R Automotive, do you have any personal

DIANE C. and THOMAS E. DESOUSA v. RICHARD A. CALVAGNO II, et al.
RICHARD A. CALVAGNO II - May 11, 2023

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1 R. A. CALVAGNO II

2 relationship with Steve Gargulo?

3 A. Just work. That's it.

4 Q. You do deal with Steve Gargulo in
5 connection with your job duties at C & R
6 Automotive?

7 A. Correct.

8 Q. When was the last time you had
9 the Charger inspected?

10 A. Last year.

11 MR. INDUSI: I want to show
12 you a picture to be marked as
13 Plaintiff's 3.

14 (Plaintiff's Exhibit 3,
15 Photograph, was marked for
16 identification.)

17 MR. INDUSI: I am showing the
18 witness a picture, Plaintiff's 3.

19 Q. Is that a picture of your vehicle
20 in your driveway?

21 A. Yes.

22 Q. Does that vehicle have tinted
23 windows?

24 A. Yes.

25 Q. Do you know what degree of tint

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1 R. A. CALVAGNO II

2 is on that car?

3 A. 20 percent.

4 Q. That's on all four windows?

5 A. Yes.

6 Q. And the rear, correct?

7 A. Yes.

8 Q. Does that car have a front plate?

9 A. Nope.

10 Q. Sitting here today it still does

11 not have a front plate, correct?

12 A. Nope. If you were a cop would
13 you write me a ticket?

14 Q. I am not going to write you a
15 ticket. I am just asking you questions.

16 A. Irrelevant.

17 Q. I don't think it's irrelevant.
18 They are fair questions.

19 Have you ever driven your Hellcat
20 at a high rate of speed down Grand Central
21 Avenue in the year of 2021?

22 A. Define high rate.

23 Q. Do you know what the posted speed
24 limit is on Grand Central Avenue in
25 Amityville?

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1 R. A. CALVAGNO II

2 A. I think 30.

3 Q. Have you ever driven the Hellcat
4 at a speed greater than 30-miles per hour on
5 Grand Central Avenue in Amityville?

6 A. I have no idea.

7 Q. Have you ever driven the Hellcat
8 at a high rate of speed over the posted speed
9 limit on Grand Central Avenue in 2022?

10 A. I don't really keep track of my
11 speeds.

12 Q. Have you ever driven the Hellcat
13 at a high rate of speed in excess of the
14 posted speed limit on Grand Central Avenue in
15 2023?

16 A. The same answer.

17 MR. INDUSI: I would like to
18 play a video.

19 John, it's in Calvagno
20 deposition exhibits.

21 Just for the record, the file
22 name is MVI Racing 90 decibels
23 2011 -- I think that's going to be
24 2022 -- that was provided in
25 discovery from Plaintiffs to

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1 R. A. CALVAGNO II

2 Defendant -- that's MP4.

3 This is the video, the file
4 name.

5 Counsel, you did receive this
6 video in discovery, correct?

7 MS. HAMID: I have to see the
8 video. There were quite a few.

9 MR. INDUSI: It's labeled MVI
10 racing 90 decibels February 11, 2022.

11 Let's pause there.

12 Q. Mr. Calvagno --

13 MR. CUOMO: Can we go back --
14 (Speaking simultaneously.)

15 Q. Mr. Calvagno, do you recognize
16 that person that came out of your house who
17 looks to be standing between your Hellcat and
18 the pickup?

19 A. It looks like me.

20 MR. INDUSI: We can continue
21 to play.

22 (Playing video.)

23 MR. INDUSI: Pause it.

24 Q. Just for the record, that's the
25 enlarged driveway, right?

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1 R. A. CALVAGNO II

2 A. Yes.

3 MR. INDUSI: Continue.

4 (Playing video.)

5 MR. INDUSI: Pause it, John.

6 Q. Just a quick question. Do you
7 know which window this video was taken out of
8 from Mr. Desousa's house?

9 A. Yes.

10 Q. I am going to hand you -- if you
11 could look at Plaintiff's 1. If you could
12 just circle the window on Mr. Desousa's house
13 that this video was taken from.

14 A. Okay.

15 Q. You can mark that with a C for
16 the record.

17 A. (Witness complies.)

18 Q. You did get in the car, right?
19 Now the car is just sitting in the driveway --

20 A. Yes.

21 MR. INDUSI: Play the video.

22 (Playing video.)

23 MR. INDUSI: Stop the video.

24 Q. Did you hear the sound of the
25 acceleration on the video?

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1 R. A. CALVAGNO II

2 A. Yes.

3 Q. Is that the sound of acceleration
4 from your vehicle?

5 A. I have no idea.

6 Q. Does that sound like the sound
7 that your vehicle makes when you accelerate
8 the car?

9 A. It could.

10 Q. When you say "it could," do you
11 mean to say that your car is capable of
12 producing a sound of exhaust like that
13 depicted in the video?

14 A. I am sure it is.

15 Q. When you say you are "sure it
16 is," you are sure it's capable of --

17 A. I am sure it is.

18 Q. But sitting here today watching
19 the video you're saying you don't know if that
20 is in fact the sound of your actual car on
21 that date?

22 A. No, I don't.

23 Q. Now, you were driving the car
24 when you pulled -- when the car pulled out of
25 the driveway, correct?

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1 R. A. CALVAGNO II

2 A. Yes.

3 Q. And you were alone in the vehicle
4 when you left your driveway, correct?

5 A. Yes.

6 Q. The pickup truck that you moved
7 in the video, which was also in the driveway
8 in Plaintiff's 1, is that your vehicle or is
9 that a work vehicle as well?

10 A. That's mine.

11 Q. And the condition of the car, the
12 Dodge Hellcat, the window guards, the tints,
13 that's all the way the car came when you
14 purchased the car, correct?

15 A. No.

16 Q. So you added those?

17 A. Yes.

18 Q. When did you add those?

19 A. When I bought the car.

20 Q. Approximately 2020?

21 A. Yeah.

22 Q. Other than those modifications
23 you made no performance modifications to the
24 car?

25 A. Correct.

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1 R. A. CALVAGNO II

2 Q. Does the Dodge Charger have a
3 remote start in it?

4 A. Yes.

5 Q. How long does the car run once
6 you activate the remote start?

7 A. I believe 12 minutes. Don't
8 quote me on that.

9 MR. INDUSI: Approximate is
10 fine. I am not looking to hold you
11 to that timeframe at all.

12 I want to ask you some
13 questions about the videos and some
14 of the discovery you turned over to
15 the Plaintiff in this case.

16 Specifically, we will start
17 with I guess this August 2, 2021,
18 video of Mr. Desousa walking down the
19 street.

20 It looks like a Ring camera
21 video. Do you want to pull that up.

22 MR. CUOMO: Are you done with
23 this one?

24 MR. INDUSI: I am.

25 MR. CUOMO: What is the date?

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1 R. A. CALVAGNO II

2 MR. INDUSI: There should be
3 the discovery -- this should be
4 August 2, 2021. I believe there are
5 two videos of Mr. Desousa walking
6 down the street.

7 MR. CUOMO: Calvagno-August 2,
8 2021, Plaintiff walking MP4.

9 MR. INDUSI: Let's play that
10 for the witness.

11 (Playing video.)

12 MR. INDUSI: This video, for
13 the record, has a marking of Calvagno
14 August 2, 2022, on the bottom. It's
15 a Ring camera.

16 Q. Mr. Calvagno, that's your Ring
17 camera, correct?

18 A. Yes.

19 Q. This is a video that you turned
20 over to your attorney to turn over to
21 Plaintiff's counsel as part of discovery,
22 correct?

23 A. I guess so.

24 MR. INDUSI: Let's watch the
25 video and then I will ask you the

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1 R. A. CALVAGNO II

2 question.

3 (Playing video.)

4 THE WITNESS: What am I

5 looking at?

6 MR. INDUSI: I will ask you

7 that question very shortly.

8 Q. Just a few questions. Your car
9 is not in the driveway; the Hellcat is not in
10 the driveway, correct?

11 A. Correct.

12 Q. I am going to assume that no one
13 else drives the Hellcat except you?

14 A. Back then, no. Now, yes.

15 Q. Who else --

16 A. Anthony drives it now. I have a
17 new one.

18 Q. So you still have the Hellcat and
19 now you have another Hellcat?

20 A. Yes.

21 Q. But back then, in 2021, if the
22 Hellcat wasn't in the driveway you were not
23 home?

24 A. Correct.

25 Q. The video shows I think

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1 R. A. CALVAGNO II

2 Mr. Desousa walking down his driveway and
3 walking down the street; is that correct?

4 A. Correct.

5 Q. What does this video show? I am
6 at a loss.

7 A. The fact that they claim in the
8 lawsuit that they can't leave their house and
9 ride bikes and take walks because it's unsafe
10 because of my car, and here they are taking a
11 walk and leaving their house. It is not
12 unsafe to leave their house like they claim.

13 Q. In the video it shows Mr. Desousa
14 walking south on Grand Central Avenue in
15 Amityville?

16 A. Walking north on Grand Central
17 Avenue next to a pickup truck it looked like.

18 Q. He's walking on his side of the
19 road not yours, correct?

20 A. He's walking --

21 Q. He's walking north from the
22 south, correct? He's south of his house
23 walking north?

24 A. Yes.

25 Q. And he is on his side of the

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1 R. A. CALVAGNO II

2 road, correct?

3 A. On the road. Nobody owns the
4 road. He's on the west side of the road.

5 MR. INDUSI: West side of the
6 road. That's the only question I
7 have. I have nothing more on this.

8 I don't know if the second one
9 shows anything more. Let's play the
10 second one.

11 The same caption, the same
12 date. Calvagno, August 2, 2021,
13 Plaintiff walking MP4.

14 (Playing video.)

15 Q. In this one it shows Mr. Desousa
16 walking south on Grand Central Avenue in
17 Amityville, correct?

18 A. Correct.

19 Q. And he's walking with a cane in
20 the video?

21 A. I did not see that.

22 Q. Were you aware that Mr. Desousa
23 recently had surgery on or about -- on or
24 before I will say August 2, 2021?

25 A. Yes.

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1 R. A. CALVAGNO II

2 Q. How did you come to learn that he
3 had surgery then?

4 A. Something with the court got
5 cancelled due to his surgery or postponed.

6 Q. He didn't come over and knock --

7 A. No.

8 Q. -- tell you?

9 A. No.

10 Q. Another subject matter at issue
11 in this case is garbage.

12 Do you know when garbage pick up
13 occurs on your block?

14 A. Yes.

15 Q. What days?

16 A. Monday is leaf and grass day.
17 Tuesday is garbage day. I believe Wednesday
18 or Thursday is recycle day and Friday is
19 regular garbage.

20 Q. So Tuesday and Friday are
21 garbage?

22 A. Regular garbage.

23 Q. And recycle you think is
24 Wednesday morning?

25 A. I think so.

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1 R. A. CALVAGNO II

2 Q. Do you put out recycles?

3 A. No.

4 MR. INDUSI: So there is I
5 believe a video, August 10th,
6 Calvagno, August 10, 2021, Plaintiff
7 removing garbage from the can and
8 leaving it in the street MP4.

9 (Playing video).

10 MR. INDUSI: Pause that, John.

11 Q. Who is that individual that just
12 came out of your house?

13 A. Anthony.

14 Q. Who is that person that came out
15 of your house?

16 A. My mother.

17 Q. But she doesn't live with you,
18 visiting? She's living with you at this time
19 or she's not?

20 A. They were staying there for a
21 while. I am not sure exactly when they left.
22 I believe at this time they were visiting.

23 Q. This is what time? This looks
24 like it's in the evening, about -- military
25 time about 8:00 p.m., correct?

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1 R. A. CALVAGNO II

2 A. Yes.

3 MR. INDUSI: Play the video.

4 (Playing video.)

5 Q. This is a video, fair to say it
6 looks like there are bags of rubbish up
7 against the curb in front of Mr. Desousa's
8 house; is that correct?

9 A. Yes.

10 MR. INDUSI: John, can you hit
11 play -- pause to show the timestamp.
12 I want to nail down this time.

13 This is a Ring video provided
14 by Defendant's counsel in discovery.
15 There is a timestamp on the bottom
16 that says 2021-10-8 19:53 EDT.

17 Q. Mr. Calvagno, this is a Ring
18 camera recording that you removed from your
19 Ring camera, correct?

20 A. Yes.

21 Q. And you did not do anything to
22 doctor this or change anything on this
23 timestamp video, correct?

24 A. No.

25 Q. To your knowledge, sitting here

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1 R. A. CALVAGNO II

2 today, that is the correct date and time that
3 this video was recorded, correct?

4 A. As far as I can tell by looking
5 at it.

6 Q. You've turned over a number of
7 videos in discovery here. Again, they are all
8 dated, all have timestamps? There is no trick
9 question here, I am just trying to confirm
10 that these are the dates and times that they
11 say they are, correct?

12 A. Yes.

13 Q. I read that date stamp based on
14 the title of the video and the numerical stamp
15 in the corner to mean August 8th. Meaning the
16 month of August, the date being 10 and the
17 year being 2021.

18 Do you agree with that?

19 A. It could be August 8th or October
20 8th. I don't know the date format that Ring
21 uses.

22 Q. Did you name the title of these
23 movies when you sent them to your attorney?

24 A. I think so.

25 Q. Sitting here today, do you recall

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1 R. A. CALVAGNO II

2 if this was October 8, 2021, or August 10,
3 2021?

4 A. I don't remember.

5 Q. Let me show you some pictures.
6 Why did this video get turned
7 over?

8 A. For the bags in the street with
9 no garbage can.

10 MR. INDUSI: I am going to
11 show you some pictures. We will mark
12 these -- I think we are up to 4.

13 (Plaintiff's Exhibit 4,
14 Photographs, were marked for
15 identification.)

16 MR. INDUSI: I am showing the
17 witness what has been marked as
18 Plaintiff's 4.

19 Q. Is this a picture that you also
20 turned over to your attorney to turn over to
21 Plaintiff's counsel as part of discovery?

22 A. Yes.

23 Q. Is this a picture of garbage bags
24 that was taken on the same day that the Ring
25 video that we just watched was recorded?

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1 R. A. CALVAGNO II

2 A. I don't know if it's from the
3 same day or not.

4 Q. Do you remember taking this
5 photo?

6 A. I remember taking the photo, yes.

7 Q. Do you remember the date you took
8 the photograph?

9 A. No.

10 Q. Looking at this photograph, is
11 the contents of the trash bags appear to you
12 to be garbage or recyclables?

13 A. I cannot see in the bags.

14 Q. Are you able to see that there is
15 a Poland Spring bottle in one of the bags here
16 in the front?

17 A. Yes.

18 Q. Other than showing that this is
19 potentially garbage sitting in the road
20 uncovered --

21 MR. INDUSI: Withdrawn.

22 Q. You turned these pictures over
23 and this Ring video footage over to establish
24 that Mr. Desousa has purportedly or allegedly
25 left garbage uncovered in the road?

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1 R. A. CALVAGNO II

2 A. Correct.

3 Q. We are going to talk about your
4 garbage.

5 Who puts your garbage out?

6 A. Me, Anthony. It depends.

7 Q. Do you cover your garbage when
8 you put your garbage out or does Anthony cover
9 the garbage that's put out in front of your
10 house for garbage collection?

11 A. It's in cans. There are no
12 covers on the cans.

13 Q. Did you ever put out garbage
14 that's not in cans in front of your house?

15 A. If it's too much for cans, yes.

16 MR. INDUSI: I am going to
17 have this marked as Plaintiff's
18 Exhibit 5.

19 (Plaintiff's Exhibit 5,
20 Photograph, was marked for
21 identification.)

22 MR. INDUSI: I will hand the
23 witness what has been marked as
24 Plaintiff's 5.

25 Plaintiff's 5 is a one, two,

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1 R. A. CALVAGNO II
2 three, four, five-page document with
3 various pictures of garbage that has
4 dates below the images.

5 MS. HAMID: I am going to
6 object to these photographs. The
7 dates, they are not on the
8 photographs. There is no indication
9 when these photos were taken.

10 MR. INDUSI: I am going to
11 move to strike your objection. We
12 are not at trial. We are at a
13 deposition.

14 I am going to ask the witness
15 some questions about the pictures.
16 If he knows the dates, he can answer
17 them. If he doesn't know the dates,
18 he doesn't have to answer them, but I
19 am going to ask him some general
20 questions about the photos.

21 Q. Did you have a chance to flip
22 through one through five of Plaintiff's 5?

23 A. Yes.

24 Q. Does that appear to be garbage
25 pails in front of your home located at 320

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1 R. A. CALVAGNO II

2 Grand Central Avenue in Amityville?

3 A. Yes.

4 Q. And that's presumably garbage
5 that has appeared in front of your house at
6 320 Grand Central Avenue on different dates,
7 correct?

8 A. Possibly.

9 Q. Let's look at the first
10 photograph. Is the first photo different from
11 the second photo?

12 A. Yeah.

13 Q. Is the second photo different
14 from the third photo?

15 A. Yeah.

16 Q. Is the third photo different from
17 the fourth photo?

18 A. Yeah.

19 Q. Is the fourth photo different
20 than the fifth photo?

21 A. Yes, different.

22 Q. Is it fair to say that there are
23 five different dates -- I am not asking about
24 the dates -- five different dates of five
25 photos showing garbage in front of your house

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1 R. A. CALVAGNO II

2 on five different dates?

3 A. Yeah.

4 MR. INDUSI: Let's take five
5 minutes.

6 (A recess was taken.)

7 MR. INDUSI: We will pull up
8 the videos. This looks like three
9 sets of -- four sets of videos that
10 were turned over by Mr. Calvagno.

11 One set is August 2, 2021,
12 open windows at 6:30 a.m.

13 Let's start with that one.

14 MR. CUOMO: This is Calvagno
15 August 2, 2021. Open windows at 6:30
16 MP4.

17 (Playing video.)

18 THE WITNESS: There is a glare
19 from the light --

20 MR. CUOMO: Is that better?

21 THE WITNESS: Yes. Thank you.

22 (Playing video.)

23 MR. INDUSI: Pause it right
24 here.

25 This is labeled -- the file

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1 R. A. CALVAGNO II
2 name is labeled August 2, 2021, open
3 windows 6:30 a.m. The timestamp
4 corner reads 202107-20 -- 28 06:32:26
5 EDT.

6 This we have a timestamp that
7 appears -- we know it cannot be -- 28
8 can't be the month, it has --

9 (Speaking simultaneously.)

10 Q. This looks like it is July 28,
11 2021, but the title is August 2, 2021, right?

12 Sitting here today, Mr. Calvagno,
13 was this video taken on July 28, 2021, or
14 August 2, 2021?

15 A. Appears to be July 28th.

16 Q. That's fine.

17 This shows -- this is a Ring
18 video of the front of your house and it shows
19 Mr. Desousa's home.

20 For what purpose was this video
21 turned over in discovery?

22 A. If you zoom in on the video and
23 look at the window on the right-hand side of
24 Desousa's house, he's standing there with a
25 videocamera waiting for me to start my car to

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1 R. A. CALVAGNO II

2 go to work to videotape me.

3 Q. And this is the same video you
4 circled in the prior exhibit and labeled C,
5 correct?

6 A. The same window?

7 Q. The same window?

8 A. Yes.

9 Q. That's the window --

10 A. Yes.

11 Q. -- Mr. Desousa is videotaping you
12 and I would guess all of the videos that he
13 has turned over to you, correct?

14 A. Yes.

15 MR. INDUSI: Let's close this
16 video.

17 Now, I think there is a second
18 video that is dated -- that's the
19 only one that is dated August 2,
20 2021, but we've clarified it's just
21 mislabeled. The real date is July.

22 The next one is January 6,
23 2022. There are one, two, three,
24 four videos from that date.

25 Let's start with January 6,

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1 R. A. CALVAGNO II

2 2022, Defendant leaving at 7:04 a.m.

3 Let's watch that one.

4 (Playing video.)

5 Q. The time stamp looks like 010622

6 07:05:03 EST.

7 Sitting here today looking at
8 this video that is you walking out of your
9 house, correct?

10 A. Correct.

11 Q. You're wearing a sweatshirt,
12 correct?

13 A. Sweatshirt, jacket. I did not
14 pay attention.

15 Q. Is it fair to say based on the
16 timestamp of the Ring camera and based on the
17 physical appearance of the trees and the
18 attire that you were wearing that was
19 accurately dated January 6th, correct?

20 A. Yes.

21 MR. INDUSI: Let's play the
22 video.

23 (Playing video.)

24 Q. The video shows you sitting in
25 your car. The car was running when you exited

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1 R. A. CALVAGNO II

2 the house, correct?

3 A. Correct.

4 Q. And you're sitting in the car; it
5 does not show anything other than that, right?

6 A. It shows the open window of me
7 being videotaped.

8 Q. It shows the open window from Mr.
9 Desousa's house, the same window that you
10 marked as C in the first exhibit that I had
11 showed you, and it shows that window being
12 open, correct?

13 A. Correct. With him with a
14 videocamera --

15 Q. With him with a videocamera
16 filming you. And that's the only window
17 that's open in front of the house, correct?

18 A. Correct.

19 MR. INDUSI: Off the record.

20 (A discussion was held off the
21 record.)

22 MR. INDUSI: The second one is
23 January 6, 2022, Plaintiff closing
24 the window at 7:06 a.m. MP4.

25 Let's play that play video.

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1 R. A. CALVAGNO II

2 (Playing video.)

3 MR. INDUSI: Let's just pause

4 it.

5 Q. The timestamp shows 7:05:56 and

6 Mr. Calvagno is turning out of his driveway;

7 is that correct?

8 A. Yes.

9 Q. And the window, in your opinion,
10 is open if I am reading that correctly at this
11 point?

12 A. Yes.

13 MR. INDUSI: Let's play the
14 video.

15 (Playing video.)

16 THE WITNESS: Now it's closed.

17 MR. INDUSI: Let's pause it
18 here.

19 Q. It looks like there is movement
20 there and it looks like there it's closed?

21 A. Right there it's closed.

22 Q. Mr. Calvagno, for the timestamp
23 on this video as of 7:06:38 a.m. the
24 northern-most window on the front of Mr.
25 Desousa's home closes after you've left your

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1 R. A. CALVAGNO II

2 home, correct?

3 A. Yes.

4 Q. And that's the only window that
5 was open, correct?

6 A. Yes.

7 Q. As of 7:06:38 it was closed,
8 correct?

9 A. Yes.

10 MR. INDUSI: Let's look at the
11 next January 6th video. This is
12 January 6, 2022. Plaintiff's lights
13 on in the front of the room -- in the
14 front room at 6:45 a.m. MP4.

15 (Playing video.)

16 THE WITNESS: Pause it for one
17 second. I know what this video is.
18 You need to zoom in on it and look at
19 the window to see why I sent it.

20 Q. I am going to ask you if you can
21 explain to me why you sent this video?

22 A. Because I am accused of waking
23 people up with my car, but they are already up
24 exercising on their exercise machine that you
25 can clearly see though the window.

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1 R. A. CALVAGNO II

2 Q. It's your testimony that on this
3 video at approximately 6:40 a.m. per the
4 timestamp in the bottom, right-hand corner of
5 the video that from your home you can see
6 someone exercising through the northern-most
7 window of Mr. Desousa's home?

8 A. I can see Mr. Desousa exercising.
9 If you zoom in about 20 times more you can see
10 clearly into the window.

11 Q. So your testimony is that this
12 video was turned over to show that Mr. Desousa
13 on January 6, 2022, was exercising in the
14 morning in his room?

15 A. He is already awake before my car
16 starts, that my car don't wake him up like he
17 claims.

18 MR. INDUSI: You want to play
19 the rest of the video to make sure
20 there is nothing else that we missed.

21 (Playing video.)

22 THE WITNESS: There is nothing
23 else on that. That's what the video
24 was for.

25 Q. Do you know that room in the

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1 R. A. CALVAGNO II
2 northern-most part of -- the front-facing
3 window in the northern-most part of Mr.
4 Desousa's home, do you know which room that is
5 in his home? Is it a bedroom, bathroom?

6 A. I've never been in the room, but
7 I've been in a house just like his, the same
8 floor plan. It's a bedroom in that house.

9 Q. Do you know if it's the master
10 bedroom, a secondary --

11 A. It should be a secondary bedroom,
12 but I don't know what the inside of his house
13 looks like.

14 MR. INDUSI: I think there is
15 nothing else in that video --

16 THE WITNESS: Correct.

17 MR. INDUSI: According to
18 Mr. Calvagno I think there is one
19 more January 6th video.

20 This is entitled January 6,
21 2022. Plaintiff's window open at
22 6:58 a.m. MP4.

23 THE WITNESS: That's the
24 beginning of the first video. They
25 are not in order right now.

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1 R. A. CALVAGNO II

2 MR. INDUSI: Let's just open
3 it up and confirm it.

4 (Playing video.)

5 Q. This video is about to end. I am
6 just going to ask you the question this way.

7 We just watched this last video
8 which we believe by looking at the videos is
9 really the second video of January 6th to show
10 the window opening; is that correct?

11 A. Yes.

12 Q. The first video of January 6th
13 being the earliest video which you testified
14 was Mr. Desousa working out. This being the
15 second video showing the window open. The
16 third video being you leaving and the fourth
17 video being the window closing at 7:06?

18 A. Yeah, I think so. It's a little
19 confusing, but yes.

20 MR. INDUSI: I believe there
21 is -- I have here in my notes August
22 2nd, which turned out was really
23 July 28, 2021 and now we have two
24 videos.

25 John, scroll down.

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1 R. A. CALVAGNO II
2 Plaintiff's window closes. This is
3 July 28th. This is window opening.
4 July 28, 2021, Plaintiff's window
5 opens at 630 a.m. MP4.

6 Let's play that video.

7 (Playing video.)

8 THE WITNESS: I think we saw
9 this already. The same white van
10 just passed.

11 MR. INDUSI: Just pause it.

12 Q. Mr. Calvagno, I think the video
13 that was mislabeled August 2, 2021, which we
14 noticed the timestamp was really July 28,
15 2021, was really this video which we already
16 saw?

17 A. I think so.

18 MR. INDUSI: Let's just watch
19 to the end. It's a few seconds more.
20 Then we will get to July 28th.

21 (Playing video.)

22 Q. Other than showing that the
23 northern-most window on Mr. Desousa's home, is
24 there any other reason that this video was
25 turned over?

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1 R. A. CALVAGNO II

2 A. No, just showing the window open
3 and he is there with a camera.

4 MR. INDUSI: The next one
5 shows July 28th. There are two more
6 July 28th videos. There is Defendant
7 driving away at 7:00 a.m.

8 Let's go to that one.

9 (Playing video.)

10 Q. This video, the title already on
11 the record, depicts, again, the northern-most
12 window being the only window open on Mr.
13 Desousa's home and Mr. Calvagno entering his
14 Hellcat and driving northbound on Grand
15 Central Avenue, correct?

16 A. Yes.

17 MR. INDUSI: There is another
18 July 28th video.

19 Off the record.

20 (A discussion was held off the
21 record.)

22 MR. INDUSI: Calvagno-July 28,
23 2021. Plaintiff's window closes at
24 7:04 a.m. MP4.

25 THE WITNESS: We saw that

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1 R. A. CALVAGNO II

2 already.

3 MR. INDUSI: Not on July 28th

4 I don't think. We never saw this guy

5 running.

6 (Playing video.)

7 MR. INDUSI: I don't see the

8 window close. Maybe it did.

9 Q. Other than the window closing, is
10 there any other reason this video was turned
11 over?

12 A. No.

13 MR. INDUSI: Now, I think we
14 are onto July 29th. There are three
15 videos here. The first one we will
16 do, Plaintiff's window -- July --
17 Calvagno-July 29, 2021. Plaintiff's
18 window closed at 6:32 a.m.

19 That looks like the most
20 recent -- the earliest video of the
21 three.

22 (Playing video.)

23 Q. Did this video show the window
24 closing?

25 A. I don't know if it shows the

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1 R. A. CALVAGNO II
2 window opening or closing. I think it's when
3 it's open because my car is still there. I
4 think it is labeled wrong on your end.

5 Q. On that day the window appeared
6 to be open in that video, correct?

7 A. I think so.

8 Q. And your car is still in the
9 driveway, correct?

10 A. Yes.

11 MR. INDUSI: Let's look at the
12 next one which should be labeled
13 July 29, 2021, Plaintiff's window
14 open at 6:52 a.m. MP4.

15 (Playing video.)

16 Q. This shows your vehicle, you
17 getting into your vehicle, correct?

18 A. No. I did not get in. I put
19 something in it.

20 Q. And you're still home?

21 A. Yes.

22 MR. INDUSI: Let's go to the
23 next one. July 29, 2021.
24 Plaintiff's window is open on 6:58 as
25 Defendant is leaving MP4.

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1 R. A. CALVAGNO II

2 (Playing video.)

3 MR. INDUSI: Pause it here.

4 Q. Now, when you walked out you said
5 something, I am anticipating it --

6 A. I don't even know what I said. I
7 couldn't understand.

8 Q. When you walked out on this --

9 A. I said something.

10 Q. -- if you remember, do you
11 remember noticing when you left your house
12 that the window in Mr. Desousa's house was
13 open on this day?

14 A. I always look.

15 Q. Mr. Calvagno, this video shows
16 you exiting your home, getting into your Dodge
17 Hellcat and heading northbound on Grand Cental
18 Avenue in Amityville and Mr. Desousa's
19 northern-most window on his home is open,
20 correct?

21 A. Correct.

22 Q. The only window on his home that
23 is open?

24 A. Yes.

25 MR. INDUSI: I think now I

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1 R. A. CALVAGNO II
2 want to ask you a question about a
3 video that you turned over that's
4 entitled January 6, 2022. Plaintiff
5 speeding MP4.

6 (Playing video.)

7 THE WITNESS: That's all
8 that's on the video. Ring just goes
9 30 seconds.

10 MR. INDUSI: Let's pause the
11 video.

12 Q. Mr. Calvagno, this video is dated
13 January 26, 2022, per the timestamp in the
14 corner 16:22:05 EST. Military time you're
15 looking at 4:22 p.m.?

16 A. Yes.

17 Q. This is in the afternoon,
18 correct?

19 A. Yes.

20 Q. And you're not home, correct?

21 A. I don't believe so. My car is
22 not there.

23 Q. Why was this video turned over?

24 A. To show Mr. Desousa backing out
25 of the his driveway and taking off down the

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1 R. A. CALVAGNO II

2 block.

3 Q. Sitting here today, watching this
4 video, are you able to determine how fast Mr.
5 Desousa was driving his vehicle?

6 A. No.

7 Q. Based on your answer before,
8 you're not I think all that good at knowing
9 how fast you were driving your car. Are you
10 able, sitting here today watching that video,
11 to determine how fast Mr. Desousa was driving
12 his car?

13 A. I already answered that and said
14 no.

15 MR. INDUSI: Let's look at the
16 video May 20, 2021. It's called
17 Calvagno-May 20,2021. Plaintiff
18 screaming MP4.

19 (Playing video.)

20 Q. Mr. Calvagno, is that you in the
21 right corner of the screen?

22 A. Yes.

23 Q. That's your vehicle?

24 A. Yes.

25 Q. And it's running?

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1 R. A. CALVAGNO II

2 A. Yes.

3 Q. From what I can see, no one is
4 outside the front of Mr. Desousa's house; is
5 that correct?

6 A. That's incorrect I think. That's
7 incorrect. Yes.

8 Q. Do you see somebody outside?

9 A. Yes. If you look right there,
10 Mr. Desousa with a videocamera filming me.
11 Black tank top and black pants with his phone
12 in his hand.

13 Q. Just to make sure I'm seeing the
14 same thing you're seeing, that's him standing
15 to the right, looking at this video, to the
16 right of the front door?

17 A. Yes.

18 MR. INDUSI: Let' hit play.

19 (Playing video.)

20 THE WITNESS: Do you see him
21 moving now?

22 MR. INDUSI: Okay. Let's
23 pause here.

24 Q. Just for the record, Mr.
25 Calvagno, there is now what appears a

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1 R. A. CALVAGNO II

2 silhouette that appears to be black in color
3 in between the front door and front window of
4 Mr. Desousa's house who you are identifying as
5 Mr. Desousa who is videotaping you; is that
6 correct?

7 A. Yes.

8 Q. At this point, you've gone --
9 prior to the last time we've paused this
10 video, you've gone in your house, come back
11 outside of your house and you are now standing
12 next to your vehicle in your driveway; is that
13 correct?

14 A. Yes.

15 Q. At this point there has been no
16 verbal exchange between Mr. Desousa and you or
17 you and Mr. Desousa; is that correct?

18 A. No, that is not.

19 Q. I believe that is you saying keep
20 taking pictures asshole to Mr. Desousa; is
21 that correct?

22 A. A hundred percent.

23 Q. And you've opened your trunk
24 either simultaneously or shortly thereafter
25 making that comment; is that correct?

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1 R. A. CALVAGNO II

2 A. Correct.

3 Q. Now, Mr. Desousa, from the image
4 has moved to the left of the tree in front of
5 his house; is that correct?

6 A. Yes.

7 MR. INDUSI: Play the video.

8 (Playing video.)

9 Q. Now, it sounds as if Mr. Desousa
10 has now responded to you and said what did you
11 say, punk; is that correct?

12 A. Yes.

13 MR. INDUSI: Let's just see
14 what you said in response.

15 (Playing video.)

16 Q. You respond to him and say keep
17 taking pictures you fucking asshole; is that
18 correct?

19 A. Yes.

20 Q. There's back and forth; Mr.
21 Desousa saying go fuck yourself, fuck you, I
22 think in sum and substance. You're saying
23 fuck you and now you're saying come over here
24 and say it, correct?

25 A. Yes.

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1 R. A. CALVAGNO II

2 Q. And the video ends with Mr.
3 Desousa saying fuck you; is that correct?

4 A. There should be a second part to
5 that video.

6 Q. This video ends with that?

7 A. Yes.

8 MR. INDUSI: Let's run number
9 two. Calvagno-May 20, 2021.
10 Plaintiff screaming MP4.

11 (Playing video.)

12 MR. INDUSI: Let's pause it.

13 Q. So Mr. Desousa called you a dirt
14 bag a few times and you called him a scumbag,
15 correct?

16 A. Yes.

17 MR. INDUSI: Hit play.

18 (Playing video.)

19 Q. The video ends. You are sitting
20 in your vehicle, the engine is running,
21 correct?

22 A. Yes.

23 Q. Mr. Desousa never comes over to
24 your property, correct?

25 A. Correct.

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1 R. A. CALVAGNO II

2 Q. And you don't go over to his
3 property, correct?

4 A. Nope.

5 Q. In the first video you were the
6 first one to begin the verbal interaction with
7 Mr. Desousa, correct?

8 A. Yes.

9 Q. Some point after this you had
10 requested your lawyer to write a cease and
11 desist letter to Mr. Desousa's attorney,
12 correct?

13 A. I don't know if it was before
14 that or after that, but I did request one.

15 Q. Why did you request a cease and
16 desist letter?

17 A. It's very unsettling to have
18 somebody who is mentally unstable videotape me
19 everyday leaving my house not knowing what he
20 is going to do to me when he has threatened me
21 before.

22 Q. Watching this exchange here on
23 May 20, 2021, as you mentioned you were the
24 first one to initiate a verbal interaction
25 with Mr. Desousa and it seemed that

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1 R. A. CALVAGNO II

2 Mr. Desousa responded and you responded back
3 to him and you invited him to come over to
4 your house to --

5 A. It was not an invitation.

6 Q. You did tell him to come over to
7 you, correct?

8 A. I told him to come say it to my
9 face.

10 Q. He didn't ultimately, correct?

11 A. No.

12 Q. He never told you to come over to
13 say anything to his face, correct?

14 A. Not that I recall in that video,
15 no. It didn't sound like it.

16 Q. When you told him to come over
17 and say it to your face, you're saying it
18 wasn't really an invitation for him to come
19 over to you and say it to your face?

20 A. It wasn't an invitation to my
21 house. It was come say it to my face.

22 Q. What did you mean when you told
23 him to come say it to your face?

24 In your mind, when you said those
25 words was that an invitation that if he came

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1 R. A. CALVAGNO II

2 over you would have gotten physical with him?

3 A. No.

4 Q. What did it matter if he was

5 saying the words he was saying from his

6 property across the street or up close and

7 personal in your face?

8 A. What's the point of yelling and

9 waking the entire neighborhood up for no

10 reason.

11 Q. So you wanted him to come over to

12 keep the volume of your word yelling to a

13 minimum for the neighborhood's sake?

14 A. Yes.

15 Q. Did you see the cease and desist

16 letter that your lawyers prepared before it

17 was sent to Mr. Desousa?

18 A. Yeah.

19 MR. INDUSI: I am going to

20 mark Plaintiff's 6.

21 (Plaintiff's Exhibit 6,

22 Letter, was marked for

23 identification.)

24 MR. INDUSI: Take a look at it

25 and then I will ask you some

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1 R. A. CALVAGNO II

2 questions about it.

3 THE WITNESS: Okay.

4 Q. I am going to ask you some
5 questions first; the first, second, third
6 paragraph on the first page.

7 The first sentence, specifically,
8 "on May 21, 2021, at 6:42 a.m. as Mr. Calvagno
9 started his car, Mr. Desousa started screaming
10 motherfucker to Mr. Calvagno."

11 In fact, it was you who started
12 the verbal interaction with Mr. Desousa on May
13 21, 2021, correct?

14 A. Yeah.

15 Q. Did you tell your attorney before
16 they sent this letter that it was you who
17 started the verbal altercation with Mr.
18 Desousa?

19 A. I don't know what I told them.
20 This letter -- this sentence doesn't say I
21 started an argument. It says he was
22 screaming. It doesn't say he started an
23 argument with me.

24 Q. Well, it says "Mr. Desousa
25 started screaming motherfucker to Mr.

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1 R. A. CALVAGNO II

2 Calvagno."

3 A. Right. He started screaming
4 motherfucker. It doesn't say he started an
5 argument. Nothing says that he started an
6 argument. It says he started screaming
7 motherfucker.

8 Q. And you screamed other words at
9 him, correct?

10 A. I did.

11 Q. And you cursed at him, correct?

12 A. Yes.

13 Q. And you, in fact, told him to
14 come over here and say what he was saying to
15 your face, correct?

16 A. Yes.

17 MR. INDUSI: Let's look at the
18 May 22nd video. I don't know which
19 one is first, the argument with the
20 parents or the blocked vehicle.

21 Let's do May 22nd. Argument
22 with Defendant's parents MP4.

23 (Playing video.)

24 MR. INDUSI: Pause it.

25 Q. Mr. Calvagno, who is the person

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1 R. A. CALVAGNO II

2 to the leftmost on the video?

3 A. In the black?

4 Q. Yes.

5 A. My mother.

6 Q. And who is the person the
7 rightmost in the video?

8 A. My father.

9 Q. At this point it looks like your
10 father and Mr. Desousa are having a
11 discussion. Mr. Desousa has not cursed as of
12 yet at this point on the video; is that
13 correct?

14 A. I don't think so.

15 MR. INDUSI: Let's play the
16 video.

17 (Playing video.)

18 Q. It seems like there is a
19 discussion. It doesn't seem like there are
20 any threats, name calling between Mr. Desousa
21 and your mom or your dad; is that a fair
22 statement?

23 A. Argumentive. That's all.

24 Q. You would characterize that as an
25 argument?

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1 R. A. CALVAGNO II

2 A. Yeah.

3 MR. INDUSI: Let's watch
4 number two. This is Calvagno May 22,
5 2021, with Defendant's Parents 2 MP4.

6 (Playing video.)

7 (Speaking simultaneously.)

8 MR. INDUSI: It looks like
9 Mr. Desousa is going inside his
10 house.

11 Let's pause it.

12 Q. This shows -- the timestamp shows
13 approximately 3:44 -- it shows 15:44:43, 3:44
14 p.m. on May 22, 2021, correct?

15 A. Yes.

16 Q. Mr. Calvagno, can you show me
17 where in this video Mr. Desousa is yelling and
18 screaming at your parents?

19 A. Go back to the beginning.

20 MR. CUOMO: Want me to go
21 back?

22 MR. INDUSI: Sure. I just
23 want to identify it.

24 (Playing video.)

25 (Speaking simultaneously.)

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1 R. A. CALVAGNO II

2 MR. INDUSI: In this number
3 two, this is argument with
4 Defendant's parents there is no
5 yelling and screaming.

6 Let's play back argument with
7 Defendant's parents number one MP4.

8 (Playing video.)

9 THE WITNESS: There is yelling
10 right there.

11 Q. Is your dad yelling back?

12 A. They are both yelling. My father
13 can't defend himself, are you kidding me?

14 Q. It just seemed to --

15 A. He's my father --

16 Q. Mr. Desousa is not cursing or
17 calling him names though, correct?

18 A. I don't know.

19 MR. INDUSI: Let's watch it.

20 (Playing video.)

21 THE WITNESS: He's cursing.

22 Q. You're dad cursed two times more,
23 correct?

24 A. They both cursed --

25 (Speaking simultaneously.)

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1 R. A. CALVAGNO II

2 Q. In your letter here --

3 A. You're very --

4 Q. In your letter it says here

5 "Mr. Desousa started yelling and screaming at
6 his parents about the alleged --

7 A. Yelling and screaming is going
8 on. So read the print before you question me
9 on something stupid.

10 Q. The yelling and screaming that
11 you're referring to here is --

12 A. Yelling and screaming, not
13 cursing. Yelling and screaming. It's very
14 plain and simple. Let's go -- without going
15 through the same fucking question.

16 Q. I just want to clarify, your dad
17 was also yelling and screaming?

18 A. They were both yelling and
19 screaming, yes, for the 15th time. If you're
20 that fucking --

21 (Speaking simultaneously.)

22 MR. CUOMO: Act like a civil
23 person.

24 THE WITNESS: I am very civil.

25 MR. CUOMO: No, you're not.

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1 R. A. CALVAGNO II

2 You are being deposed here.

3 Answer --

4 (Speaking simultaneously.)

5 MR. CUOMO: I don't care. I
6 am the attorney in this case and I am
7 going to say something.

8 I am not going to sit here and
9 allow --

10 THE WITNESS: Don't fucking
11 yell at me.

12 MR. CUOMO: Don't you dare
13 curse in this room.

14 (Speaking simultaneously.)

15 MR. CUOMO: We are not going
16 to take that in here, am I clear? Am
17 I being clear, Mr. Calvagno?

18 THE WITNESS: Sure, Mr. Cuomo.

19 MR. CUOMO: You're a real --

20 THE WITNESS: A real what?
21 Say it.

22 MR. CUOMO: You're a real
23 wonderful human being.

24 MS. HAMID: Let's take five
25 minutes.

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1 R. A. CALVAGNO II

2 (A recess was taken.)

3 MR. INDUSI: The next video is

4 May 22nd. There are four videos.

5 Blocked vehicle 1 MP4.

6 (Playing video.)

7 THE WITNESS: If you'd like me

8 to explain --

9 MR. INDUSI: Let's pause it

10 here.

11 Q. Mr. Calvagno, this appears to be
12 a video dated May 22, 2021, at 9:05 a.m.,
13 correct?

14 A. Yes.

15 Q. It looks like your pickup is in
16 the street, another black sedan in front of
17 your house is in the street and the flatbed is
18 in your driveway, correct?

19 A. Yes.

20 Q. What is the -- what is this video
21 showing us?

22 A. Flatbed parked across the street
23 in front of Mr. Desousa's house. It's mine.
24 It shows him pulling his car out of his
25 driveway to block that flatbed in so I can't

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1 R. A. CALVAGNO II

2 move it.

3 Right now there is nothing around
4 the flatbed, the front or the back of it. The
5 flatbed is free and clear if I have to go out
6 and go to a call for work.

7 Q. Let me stop you right there.

8 You said the flatbed is yours; do
9 you personally own the flatbed?

10 A. The flatbed is C & R's.

11 MR. CUOMO: Let's take a few
12 minutes.

13 (A recess was taken.)

14 Q. I am assuming that -- before we
15 took a break, it's not your personal tow
16 truck, it's C & R's tow truck?

17 A. Yes.

18 Q. You have it there in case you
19 need to go on a call; is that correct?

20 A. Correct.

21 Q. I think earlier I asked you some
22 questions about your job duties. You said you
23 were an office manager.

24 Do you also do tows yourself?

25 A. If I have to.

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1 R. A. CALVAGNO II

2 Q. Do you have a CDL license to --

3 A. You don't need a CDL for that.

4 Q. What type of tows would you go
5 out and do if required?

6 A. If someone broke down.

7 Q. These are for --

8 A. We work with the police
9 department.

10 Q. Is that specified to a specific
11 road that an accident occurs on; is that how
12 that towing contract works?

13 A. It's Nassau County Police.

14 Q. Any and --

15 A. We work for all of Nassau County.

16 Q. Doesn't matter what road it broke
17 down on, Southern State Parkway, Northern
18 State Parkway, you're going?

19 A. Parkways are not Nassau County
20 Police. They are New York State Troopers.

21 Q. So if it's Nassau County Police,
22 not on a trooper-designated road, you have the
23 contract to go and pick up the vehicle?

24 A. Yes. I personally do not. The
25 company does.

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1 R. A. CALVAGNO II

2 Q. That's 24/7?

3 A. Yes.

4 Q. All tows for NCPD countywide?

5 A. Yes.

6 Q. So the car is parked there.

7 You're Hellcat is likely at the shop and you
8 have the tow truck?

9 A. Correct.

10 Q. Right now in the video, we are
11 looking at video designated blocked vehicle 1
12 MP4.

13 Your truck is parked on the
14 street in front of Mr. Desousa's house facing
15 south?

16 A. Yes.

17 MR. INDUSI: Let's continue
18 the video.

19 (Playing video.)

20 THE WITNESS: Mr. Desousa
21 started his car. That's the noise
22 you hear.

23 He turns around and parks it
24 right behind the flatbed about two
25 inches from the flatbed.

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1 R. A. CALVAGNO II

2 Q. This video ends, Mr. Calvagno,
3 with the vehicle pulling out of Mr. Desousa's
4 driveway, a black -- it looks like -- SUV,
5 making a U-turn and pulling up behind your tow
6 truck; is that correct?

7 A. Yes.

8 MR. INDUSI: Let's watch
9 number two.

10 (Playing video.)

11 THE WITNESS: As you can see,
12 it's right on the ass of the flatbed.
13 You can't even walk.

14 MR. INDUSI: Let's pause it
15 and I will ask a question.

16 Q. You have -- now this video number
17 two starts with a black SUV, which appears to
18 be the same black SUV that pulled out of Mr.
19 Desousa's driveway parked behind the tow
20 truck; is that correct?

21 A. Yes.

22 MR. INDUSI: Let's play the
23 video.

24 (Playing video.)

25 Q. This video ends -- I am going to

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1 R. A. CALVAGNO II
2 ask you the question. It looks like your mom
3 enters the home in this video at the end of
4 the video and indicates that somebody is
5 taking pictures, presumably Mr. Desousa; is
6 that correct?

7 A. Yes.

8 MR. INDUSI: Let's watch
9 Calvagno May 22, 2021, blocked
10 vehicle number three MP4.

11 (Playing video.)

12 MR. INDUSI: Let's pause it
13 for one second.

14 Q. It looks like there is
15 construction going on in your property.

16 This is the new driveway,
17 correct?

18 A. No, they are putting a new
19 bulkhead at my house at that point in time.
20 You can see Mr. Desousa pulled his wife's car
21 out of the driveway.

22 Q. And he's heading southbound --

23 A. He didn't leave it behind my
24 truck right now.

25 MR. INDUSI: Let's continue to

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1 R. A. CALVAGNO II

2 watch.

3 (Playing video.)

4 THE WITNESS: Now he parks his
5 wife's car in front of the truck so I
6 can't get out.

7 MR. INDUSI: I am going to ask
8 you some questions now.

9 Q. It looks like to me there's at
10 least 10 feet between the front of that truck
11 and the back of Mr. Desousa's wife's vehicle;
12 is that correct?

13 A. No, like three feet.

14 Q. And you can tell that from this
15 picture?

16 A. I was there in person.

17 Q. You were home at this time?

18 A. Yes.

19 Q. Did you ever go out and walk over
20 there and look closely to see what the
21 distance was?

22 A. No.

23 Q. What was the vantage point to
24 which you saw the distance between that back
25 of Mrs. Desousa's vehicle and the front of

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1 R. A. CALVAGNO II

2 your tow truck?

3 A. From my driveway.

4 Q. Did you turn over the Ring video
5 showing you standing in your driveway and
6 observing that distance?

7 A. It might be on one of these. No,
8 because I was walking back and forth. I
9 turned the video over of cars being parked
10 there.

11 MR. INDUSI: Let's watch the
12 video.

13 (Playing video.)

14 MR. INDUSI: What appears you
15 to be coming out of the house at the
16 tail end of this video.

17 Let's watch the fourth video.
18 Calvagno May 22, 2021 blocked vehicle
19 4.MP4.

20 (Playing video.)

21 MR. INDUSI: Let's pause it
22 here.

23 Q. Looking at the distance between
24 the rear of Mrs. Desousa's vehicle and the
25 front of your tow truck, again, looking at

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1 R. A. CALVAGNO II

2 this video, do you still believe it to be a
3 three-foot difference between the --

4 A. Two and five feet. What you
5 can't see is on the back of this tow truck it
6 sticks out about two and a half feet out is a
7 tow bar that is the size of the tow truck. It
8 sticks out.

9 You can't -- if I cut the wheel
10 to the left right there to pull out, I am
11 going to rip the whole front of his car off
12 with that tow bar. You can't see it with this
13 picture, but if you know a flatbed you know
14 how they're made.

15 I have to pull up a good two and
16 a half, three feet before I can cut the wheel
17 or the tail bar will take the front of his car
18 off.

19 Q. Were you able to get your tow
20 truck out of this spot without damaging
21 Mr. Desousa's vehicle or Mrs. Desousa's
22 vehicle?

23 A. If I had to?

24 Q. Yes.

25 A. No.

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1 R. A. CALVAGNO II

2 Q. Did you have to?

3 A. No. If you watch the red car
4 will move and I pull the tow truck up at the
5 end of the driveway.

6 MR. INDUSI: Let's play the
7 video.

8 (Playing video.)

9 Q. Do you have in your possession
10 the video showing Mr. Desousa moving his
11 vehicles?

12 A. It just showed you moving them
13 out.

14 Q. Moving them --

15 A. If you go back to the video with
16 the arguing with my dad you will see the tow
17 truck was pulled forward and was moved.

18 Q. Do you have any other Ring videos
19 from May 22, 2021, in your possession?

20 A. No, I don't think so.

21 MR. CUOMO: There is a fifth
22 one.

23 THE WITNESS: Maybe that's it
24 then.

25 MR. INDUSI: We will have to

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1 R. A. CALVAGNO II

2 pick a date to finish.

3 THE WITNESS: Yeah, if you
4 look here all the cars -- if I move
5 the tow truck forward, he moves the
6 black car forward and now the wife's
7 car is blocking the driveway.

8 Do you see how they are all
9 moved?

10 MR. INDUSI: Yes, I am going
11 to ask you some questions. Let's
12 watch the rest of the video.

13 (Playing video.)

14 THE WITNESS: You see how they
15 are all moved.

16 MR. INDUSI: Yes. I just want
17 to see what the rest of this video
18 shows and then I will ask you some
19 questions and then we will call it
20 for today.

21 (Playing video.)

22 THE WITNESS: There you go.
23 She pulled away again. He's putting
24 it back in the driveway now.

25 He's moving it closer to the

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1 R. A. CALVAGNO II

2 truck. It looks like about two feet
3 there now.

4 Q. So this video ends. It shows
5 somebody is in the vehicle, which you
6 identified as Mrs. Desousa's vehicle. It
7 looks like the vehicle was reversed closer to
8 the tow truck and right before the video ends
9 it pulls slightly forward --

10 A. Very slightly.

11 Q. After this video ends, is there
12 no further Ring videos that capture
13 Mr. Desousa's -- Mrs. Desousa's vehicle and
14 your tow truck?

15 A. I don't know. If they weren't
16 submitted there are no other videos.

17 Q. Is there a reason subsequent
18 videos to this video were not provided to your
19 attorney in connection with this alleged
20 incident?

21 A. They would have been repetitive
22 to show the same thing of the truck being
23 blocked in.

24 Q. At any point on May 22, 2021,
25 does Mr. Desousa move his vehicles back into

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1 R. A. CALVAGNO II

2 his driveway?

3 A. Yes.

4 Q. What time does that happen?

5 A. I don't remember.

6 Q. Were you prevented from going on
7 any tow calls on May 22, 2021, as a result of
8 Mr. Desousa having his cars parked in front of
9 his house?

10 A. I didn't get no calls thankfully.

11 Q. Was there any argument between
12 you and Mr. Desousa about moving his cars back
13 into his driveway or did he do so on his own?

14 A. At the end of the day he did so
15 on his own.

16 MR. INDUSI: It's after 4:00.

17 I have to be somewhere at 5:00. Just
18 the normal stips. Keep this open.

19 I just ask that you not speak
20 about your testimony that you gave
21 here today until we finish your
22 deposition.

23 (Time noted: 4:02 p.m.)

24

25

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A C K N O W L E D G M E N T

STATE OF NEW YORK)
 :ss
COUNTY OF)

I, RICHARD A. CALVAGNO II, hereby
certify that I have read the transcript of my
testimony taken under oath in my deposition of
May 11, 2023; that the transcript is a true,
complete and correct record of my testimony,
and that the answers on the record as given by
me are true and correct.

RICHARD A. CALVAGNO II

Signed and subscribed to before
me, this day
of , 2023.

Notary Public, State of New York

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-----I N D E X-----

WITNESS EXAMINATION BY PAGE

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-----INFORMATION TO BE FURNISHED-----

PAGE: 13 Boss' Last Name

-----EXHIBITS-----

PLAINTIFF'S FOR I.D.

1 Photograph 27

2 Letter 34

3 Photograph 35

4 Photograph 51

5 Photograph 53

6 Letter 79

(Counsel retained exhibits.)

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C E R T I F I C A T E

STATE OF NEW YORK)
) ss.:
COUNTY OF NASSAU)

I, ELIZABETH SCHEIBE, a Notary
Public within and for the State of
New York, do hereby certify:

That RICHARD A. CALVAGNO II,
the witness whose deposition is
hereinbefore set forth, was duly
sworn by me and that such deposition
is a true record of the testimony
given by such witness.

I further certify that I am not
related to any of the parties to this
action by blood or marriage; and that I am
in no way interested in the outcome of
this matter.

IN WITNESS WHEREOF, I have
hereunto set my hand this 11th day of
May, 2023.

Elizabeth Scheibe
ELIZABETH SCHEIBE



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*** ERRATA SHEET ***

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NAME OF CASE: DIANE C. DESOUSA and THOMAS E.

DESOUSA v. RICHARD A. CALVAGNO

II and PATRICK J. KARCHER

DATE OF DEPOSITION: 5/11/2023

NAME OF WITNESS: RICHARD A. CALVAGNO II

PAGE	LINE	FROM	TO	REASON
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RICHARD A. CALVAGNO II

SUBSCRIBED AND SWORN BEFORE ME THIS ____ DAY OF
_____, 2023.

(NOTARY PUBLIC) MY COMMISSION EXPIRES:

DIANE C. and THOMAS E. DESOUSA v. RICHARD A. CALVAGNO II, et al.
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